

FAMILY CODE

TITLE 2. CHILD IN RELATION TO THE FAMILY

SUBTITLE A. LIMITATIONS OF MINORITY

CHAPTER 34. AUTHORIZATION AGREEMENT FOR NONPARENT ADULT
CAREGIVER

Sec. 34.0015. DEFINITIONS. In this chapter:

(1) "Adult caregiver" means an adult person whom a parent has authorized to provide temporary care for a child under this chapter.

(2) "Parent" has the meaning assigned by Section 101.024.

Added by Acts 2011, 82nd Leg., R.S., Ch. 897 (S.B. 482), Sec. 1, eff. September 1, 2011.

Amended by:

Acts 2017, 85th Leg., R.S., Ch. 244 (H.B. 871), Sec. 2, eff. September 1, 2017.

Sec. 34.002. AUTHORIZATION AGREEMENT. (a) A parent or both parents of a child may enter into an authorization agreement with an adult caregiver to authorize the adult caregiver to perform the following acts in regard to the child:

(1) to authorize medical, dental, psychological, or surgical treatment and immunization of the child, including executing any consents or authorizations for the release of information as required by law relating to the treatment or

immunization;

(2) to obtain and maintain health insurance coverage for the child and automobile insurance coverage for the child, if appropriate;

(3) to enroll the child in a day-care program or preschool or in a public or private elementary or secondary school;

(4) to authorize the child to participate in age-appropriate extracurricular, civic, social, or recreational activities, including athletic activities;

(5) to authorize the child to obtain a learner's permit, driver's license, or state-issued identification card;

(6) to authorize employment of the child;

(7) to apply for and receive public benefits on behalf of the child; and

(8) to obtain:

(A) copies or originals of state-issued personal identification documents for the child, including the child's birth certificate; and

(B) to the extent authorized under federal law, copies or originals of federally issued personal identification documents for the child, including the child's social security card.

(b) To the extent of any conflict or inconsistency between this chapter and any other law relating to the eligibility

requirements other than parental consent to obtain a service under Subsection (a), the other law controls.

(c) An authorization agreement under this chapter does not confer on an adult caregiver the right to authorize the performance of an abortion on the child or the administration of emergency contraception to the child.

(d) Only one authorization agreement may be in effect for a child at any time. An authorization agreement is void if it is executed while a prior authorization agreement remains in effect.

Added by Acts 2009, 81st Leg., R.S., Ch. 815 (S.B. 1598), Sec. 1, eff. June 19, 2009.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 484 (H.B. 848), Sec. 2, eff. September 1, 2011.

Acts 2011, 82nd Leg., R.S., Ch. 897 (S.B. 482), Sec. 2, eff. September 1, 2011.

Acts 2015, 84th Leg., R.S., Ch. 1167 (S.B. 821), Sec. 1, eff. September 1, 2015.

Acts 2017, 85th Leg., R.S., Ch. 244 (H.B. 871), Sec. 3, eff. September 1, 2017.

Acts 2017, 85th Leg., R.S., Ch. 885 (H.B. 3052), Sec. 2, eff. September 1, 2017.

Sec. 34.0021. AUTHORIZATION AGREEMENT BY PARENT IN CHILD

PROTECTIVE SERVICES CASE. A parent may enter into an authorization agreement with an adult caregiver with whom a child is placed under a parental child safety placement agreement approved by the Department of Family and Protective Services to allow the person to perform the acts described by Section 34.002(a) with regard to the child:

(1) during an investigation of abuse or neglect; or
(2) while the department is providing services to the parent.

Added by Acts 2011, 82nd Leg., R.S., Ch. 484 (H.B. 848), Sec. 3, eff. September 1, 2011.

Amended by:

Acts 2017, 85th Leg., R.S., Ch. 244 (H.B. 871), Sec. 4, eff. September 1, 2017.

Sec. 34.0022. INAPPLICABILITY OF CERTAIN LAWS. (a) An authorization agreement executed under this chapter between a child's parent and an adult caregiver does not subject the adult caregiver to any law or rule governing the licensing or regulation of a residential child-care facility under Chapter 42, Human Resources Code.

(b) A child who is the subject of an authorization agreement executed under this chapter is not considered to be placed in foster care and the parties to the authorization agreement are not subject to any law or rule governing foster

care providers.

Added by Acts 2017, 85th Leg., R.S., Ch. 244 (H.B. 871), Sec. 5, eff. September 1, 2017.

Sec. 34.003. CONTENTS OF AUTHORIZATION AGREEMENT.

(a) The authorization agreement must contain:

(1) the following information from the adult caregiver:

(A) the name and signature of the adult caregiver;

(B) the adult caregiver's relationship to the child; and

(C) the adult caregiver's current physical address and telephone number or the best way to contact the adult caregiver;

(2) the following information from the parent:

(A) the name and signature of the parent; and

(B) the parent's current address and telephone number or the best way to contact the parent;

(3) the information in Subdivision (2) with respect to the other parent, if applicable;

(4) a statement that the adult caregiver has been given authorization to perform the functions listed in Section 34.002(a) as a result of a voluntary action of the parent and that the adult caregiver has voluntarily assumed the

responsibility of performing those functions;

(5) statements that neither the parent nor the adult caregiver has knowledge that a parent, guardian, custodian, licensed child-placing agency, or other authorized agency asserts any claim or authority inconsistent with the authorization agreement under this chapter with regard to actual physical possession or care, custody, or control of the child;

(6) statements that:

(A) to the best of the parent's and adult caregiver's knowledge:

(i) there is no court order or pending suit affecting the parent-child relationship concerning the child;

(ii) there is no pending litigation in any court concerning:

(a) custody, possession, or placement of the child; or

(b) access to or visitation with the child; and

(iii) a court does not have continuing jurisdiction concerning the child; or

(B) the court with continuing jurisdiction concerning the child has given written approval for the execution of the authorization agreement accompanied by the following information:

(i) the county in which the court is

located;

(ii) the number of the court; and

(iii) the cause number in which the order was issued or the litigation is pending;

(7) a statement that to the best of the parent's and adult caregiver's knowledge there is no current, valid authorization agreement regarding the child;

(8) a statement that the authorization is made in conformance with this chapter;

(9) a statement that the parent and the adult caregiver understand that each party to the authorization agreement is required by law to immediately provide to each other party information regarding any change in the party's address or contact information;

(10) a statement by the parent that:

(A) indicates the authorization agreement is for a term of:

(i) six months from the date the parties enter into the agreement, which renews automatically for six-month terms unless the agreement is terminated as provided by Section 34.008; or

(ii) the time provided in the agreement with a specific expiration date earlier than six months after the date the parties enter into the agreement; and

(B) identifies the circumstances under which

the authorization agreement may be:

(i) terminated as provided by Section 34.008 before the term of the agreement expires; or

(ii) continued beyond the term of the agreement by a court as provided by Section 34.008(b); and

(11) space for the signature and seal of a notary public.

(b) The authorization agreement must contain the following warnings and disclosures:

(1) that the authorization agreement is an important legal document;

(2) that the parent and the adult caregiver must read all of the warnings and disclosures before signing the authorization agreement;

(3) that the persons signing the authorization agreement are not required to consult an attorney but are advised to do so;

(4) that the parent's rights as a parent may be adversely affected by placing or leaving the parent's child with another person;

(5) that the authorization agreement does not confer on the adult caregiver the rights of a managing or possessory conservator or legal guardian;

(6) that a parent who is a party to the authorization agreement may terminate the authorization agreement and resume

custody, possession, care, and control of the child on demand and that at any time the parent may request the return of the child;

(7) that failure by the adult caregiver to return the child to the parent immediately on request may have criminal and civil consequences;

(8) that, under other applicable law, the adult caregiver may be liable for certain expenses relating to the child in the adult caregiver's care but that the parent still retains the parental obligation to support the child;

(9) that, in certain circumstances, the authorization agreement may not be entered into without written permission of the court;

(10) that the authorization agreement may be terminated by certain court orders affecting the child;

(11) that the authorization agreement does not supersede, invalidate, or terminate any prior authorization agreement regarding the child;

(12) that the authorization agreement is void if a prior authorization agreement regarding the child is in effect and has not expired or been terminated;

(13) that, except as provided by Section 34.005(a-2), the authorization agreement is void unless not later than the 10th day after the date the authorization agreement is signed, the parties mail to a parent who was not a party to the

authorization agreement at the parent's last known address, if the parent is living and the parent's parental rights have not been terminated:

(A) one copy of the authorization agreement by certified mail, return receipt requested, or international registered mail, return receipt requested, as applicable; and

(B) one copy of the authorization agreement by first class mail or international first class mail, as applicable; and

(14) that the authorization agreement does not confer on an adult caregiver the right to authorize the performance of an abortion on the child or the administration of emergency contraception to the child.

Added by Acts 2009, 81st Leg., R.S., Ch. 815 (S.B. 1598), Sec. 1, eff. June 19, 2009.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 897 (S.B. 482), Sec. 3, eff. September 1, 2011.

Acts 2017, 85th Leg., R.S., Ch. 244 (H.B. 871), Sec. 6, eff. September 1, 2017.

Acts 2017, 85th Leg., R.S., Ch. 885 (H.B. 3052), Sec. 3, eff. September 1, 2017.

Sec. 34.004. EXECUTION OF AUTHORIZATION AGREEMENT.

(a) The authorization agreement must be signed and sworn to

before a notary public by the parent and the adult caregiver.

(b) A parent may not execute an authorization agreement without a written order by the appropriate court if:

(1) there is a court order or pending suit affecting the parent-child relationship concerning the child;

(2) there is pending litigation in any court concerning:

(A) custody, possession, or placement of the child; or

(B) access to or visitation with the child; or

(3) a court has continuing, exclusive jurisdiction over the child.

(c) An authorization agreement obtained in violation of Subsection (b) is void.

Added by Acts 2009, 81st Leg., R.S., Ch. 815 (S.B. 1598), Sec. 1, eff. June 19, 2009.

Amended by:

Acts 2017, 85th Leg., R.S., Ch. 244 (H.B. 871), Sec. 7, eff. September 1, 2017.

Acts 2017, 85th Leg., R.S., Ch. 885 (H.B. 3052), Sec. 4, eff. September 1, 2017.

Sec. 34.005. DUTIES OF PARTIES TO AUTHORIZATION AGREEMENT.

(a) If both parents did not sign the authorization agreement, not later than the 10th day after the date the authorization

agreement is executed the parties shall mail to the parent who was not a party to the authorization agreement at the parent's last known address, if that parent is living and that parent's parental rights have not been terminated:

(1) one copy of the executed authorization agreement by certified mail, return receipt requested, or international registered mail, return receipt requested, as applicable; and

(2) one copy of the executed authorization agreement by first class mail or international first class mail, as applicable.

(a-1) Except as otherwise provided by Subsection (a-2), an authorization agreement is void if the parties fail to comply with Subsection (a).

(a-2) Subsection (a) does not apply to an authorization agreement if the parent who was not a party to the authorization agreement:

(1) does not have court-ordered possession of or access to the child who is the subject of the authorization agreement; and

(2) has previously committed an act of family violence, as defined by Section 71.004, or assault against the parent who is a party to the authorization agreement, the child who is the subject of the authorization agreement, or another child of the parent who is a party to the authorization agreement, as documented by one or more of the following:

(A) the issuance of a protective order against the parent who was not a party to the authorization agreement as provided under Chapter 85 or under a similar law of another state; or

(B) the conviction of the parent who was not a party to the authorization agreement of an offense under Title 5, Penal Code, or of another criminal offense in this state or in another state an element of which involves a violent act or prohibited sexual conduct.

(b) A party to the authorization agreement shall immediately inform each other party of any change in the party's address or contact information. If a party fails to comply with this subsection, the authorization agreement is voidable by the other party.

Added by Acts 2009, 81st Leg., R.S., Ch. 815 (S.B. 1598), Sec. 1, eff. June 19, 2009.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 897 (S.B. 482), Sec. 4, eff. September 1, 2011.

Acts 2017, 85th Leg., R.S., Ch. 885 (H.B. 3052), Sec. 5, eff. September 1, 2017.

Sec. 34.006. AUTHORIZATION VOIDABLE. An authorization agreement is voidable by a party if the other party knowingly:

(1) obtained the authorization agreement by fraud,

duress, or misrepresentation; or

(2) made a false statement on the authorization agreement.

Added by Acts 2009, 81st Leg., R.S., Ch. 815 (S.B. 1598), Sec. 1, eff. June 19, 2009.

Sec. 34.007. EFFECT OF AUTHORIZATION AGREEMENT. (a) A person who is not a party to the authorization agreement who relies in good faith on an authorization agreement under this chapter, without actual knowledge that the authorization agreement is void, revoked, or invalid, is not subject to civil or criminal liability to any person, and is not subject to professional disciplinary action, for that reliance if the agreement is completed as required by this chapter.

(b) The authorization agreement does not affect the rights of the child's parent or legal guardian regarding the care, custody, and control of the child, and does not mean that the adult caregiver has legal custody of the child.

(c) An authorization agreement executed under this chapter does not confer or affect standing or a right of intervention in any proceeding under Title 5.

Added by Acts 2009, 81st Leg., R.S., Ch. 815 (S.B. 1598), Sec. 1, eff. June 19, 2009.

Amended by:

Acts 2017, 85th Leg., R.S., Ch. 244 (H.B. 871), Sec. 8,

eff. September 1, 2017.

Sec. 34.0075. TERM OF AUTHORIZATION AGREEMENT. An authorization agreement executed under this chapter is for a term of six months from the date the parties enter into the agreement and renews automatically for six-month terms unless:

(1) an earlier expiration date is stated in the authorization agreement;

(2) the authorization agreement is terminated as provided by Section 34.008; or

(3) a court authorizes the continuation of the agreement as provided by Section 34.008(b).

Added by Acts 2017, 85th Leg., R.S., Ch. 244 (H.B. 871), Sec. 9, eff. September 1, 2017.

Sec. 34.008. TERMINATION OF AUTHORIZATION AGREEMENT.

(a) Except as provided by Subsection (b), an authorization agreement under this chapter terminates if, after the execution of the authorization agreement, a court enters an order:

(1) affecting the parent-child relationship;

(2) concerning custody, possession, or placement of the child;

(3) concerning access to or visitation with the child; or

(4) regarding the appointment of a guardian for the

child under Subchapter B, Chapter 1104, Estates Code.

(b) An authorization agreement may continue after a court order described by Subsection (a) is entered if the court entering the order gives written permission.

(c) An authorization agreement under this chapter terminates on written revocation by a party to the authorization agreement if the party:

(1) gives each party written notice of the revocation;

(2) files the written revocation with the clerk of the county in which:

(A) the child resides;

(B) the child resided at the time the authorization agreement was executed; or

(C) the adult caregiver resides; and

(3) files the written revocation with the clerk of each court:

(A) that has continuing, exclusive jurisdiction over the child;

(B) in which there is a court order or pending suit affecting the parent-child relationship concerning the child;

(C) in which there is pending litigation concerning:

(i) custody, possession, or placement of

the child; or

(ii) access to or visitation with the
child; or

(D) that has entered an order regarding the
appointment of a guardian for the child under Subchapter B,
Chapter 1104, Estates Code.

(d) Repealed by Acts 2017, 85th Leg., R.S., Ch. 244 (H.B.
871), Sec. 13, eff. September 1, 2017.

(e) If both parents have signed the authorization
agreement, either parent may revoke the authorization agreement
without the other parent's consent.

(f) Execution of a subsequent authorization agreement does
not by itself supersede, invalidate, or terminate a prior
authorization agreement.

Added by Acts 2009, 81st Leg., R.S., Ch. 815 (S.B. 1598), Sec.
1, eff. June 19, 2009.

Amended by:

Acts 2011, 82nd Leg., R.S., Ch. 897 (S.B. 482), Sec. 5,
eff. September 1, 2011.

Acts 2017, 85th Leg., R.S., Ch. 244 (H.B. 871), Sec. 10,
eff. September 1, 2017.

Acts 2017, 85th Leg., R.S., Ch. 244 (H.B. 871), Sec. 13,
eff. September 1, 2017.

Acts 2017, 85th Leg., R.S., Ch. 324 (S.B. 1488), Sec.
22.017, eff. September 1, 2017.

Sec. 34.009. PENALTY. (a) A person commits an offense if the person knowingly:

(1) presents a document that is not a valid authorization agreement as a valid authorization agreement under this chapter;

(2) makes a false statement on an authorization agreement; or

(3) obtains an authorization agreement by fraud, duress, or misrepresentation.

(b) An offense under this section is a Class B misdemeanor.

Added by Acts 2009, 81st Leg., R.S., Ch. 815 (S.B. 1598), Sec. 1, eff. June 19, 2009.

—AFRICAN UNION		UNION AFRICAINE
الاتحاد الأفريقي		UNIÃO AFRICANA
AFRICAN COURT ON HUMAN AND PEOPLES' RIGHTS COUR AFRICAINE DES DROITS DE L'HOMME ET DES PEUPLES		

MATTER OF

~~SUY BI GOHORE EMILE AND OTHERS~~

~~V.~~

~~REPUBLIC OF CÔTE D'IVOIRE~~

~~APPLICATION No. 044/2019~~

~~ORDER OF PROVISIONAL MEASURES~~

~~28 NOVEMBER 2019~~

~~The Court composed of: Ben KIOKO, Vice-President; Rafaâ BEN ACHOUR, Ângelo V. MATUSSE, Suzanne MENGUE, M-Thérèse MUKAMULISA, Tujilane R. CHIZUMILA, Chafika BENS AOULA, Blaise TCHIKAYA, Stella I. ANUKAM, Imani D. ABOUD—Judges; and Robert ENO, Registrar;~~

~~In accordance with Article 22 of the Protocol to the African Charter on Human and Peoples' Rights on the Establishment of an African Court on Human and Peoples' Rights (hereinafter referred to as "the Protocol") and Rule 8(2) of the Rules of Court (hereinafter referred to as "the Rules"), Judge Sylvain ORÉ, member of the Court and national of Côte d'Ivoire did not hear the case.~~

~~In the matter of:~~

~~SUY BI GOHORE EMILE AND 7 OTHERS~~

~~represented by: Jean-Chrysostome BLESSEY, Advocate~~

~~versus~~

~~REPUBLIC OF CÔTE D'IVOIRE~~

~~represented by:~~

~~i.—~~

~~i.—Mr. Delbe ZIRIGNON CONSTANT, Magistrate, Technical Adviser to the Keeper of the Seals, Minister of Justice and Human Rights; and~~

~~ii.—Mr. Abdoulaye MEITE, Advocate, Member of the Bar of Côte d'Ivoire;~~

~~After deliberation,~~

~~makes the following Order:~~

~~I. THE PARTIES~~

~~1. Suy Bi Gohoré Emile, Kakou Guikahué Maurice, Kouassi Kouamé Patrice, Kouadjo François, Yao N'guessan Justin Innocent, Gnokonte Gnessoa Désiré, Djedje Mady Alphonse, Soro Kigbafori Guillaume, (hereinafter referred to as "the Applicants") are professionals of Ivorian origin.~~

2. ~~The Application was filed against the Republic of Côte d'Ivoire (hereinafter referred to as "the Respondent State") which became a party to the African Charter on Human and Peoples' Rights (hereinafter referred to as "the Charter") on 31 March 1992 and to the Protocol on 25 January 2004. The Respondent State also filed the Declaration prescribed under Article 34(6) of the Protocol by which it accepts the jurisdiction of the Court to receive applications from individuals and Non-Governmental Organizations.~~

~~II. SUBJECT OF THE APPLICATION~~

3. ~~The present Application filed on 10 September 2019 is in respect of requests for provisional measures. The substantive matter concerns a new law adopted by the National Assembly of the Respondent State in the context of the reform of the Independent Electoral Commission Law. Moreover, this Court on 18 November 2016 already delivered on the merits of this matter a judgment on Application No. 001/2014 – *Action for the Protection of Human Rights (APDH) v. Republic of Côte d'Ivoire* concerning the composition of the Respondent State's Independent Electoral Commission. The Court found that the composition of the Ivorian electoral body was imbalanced and that this affected its independence and impartiality. The Court also held that Law No. 2014-335 of 18 June 2014 violated Articles 10(3) and 17(1) of the Charter and Article 3 of ECOWAS Democracy Protocol. The Court consequently ordered the Respondent State to amend Law No. 2014-335 of 18 June 2014 on the Independent Electoral Commission to make it compliant with the afore-mentioned instruments.~~

4. ~~On 04 May 2017, the Respondent State requested interpretation of the judgment of 18 November 2016. On 28 November 2017, the Court declared this request inadmissible.~~

5. ~~In 2019, the Respondent State decided to reform the Independent Electoral Commission (IEC). The opposition refused to participate in the reform process on the grounds of lack of clear terms of reference to serve as basis for discussion.~~

6. ~~Faced with the opposition parties' refusal to participate in the process, the Respondent State pursued the exercise. It introduced Bill No. 2019-708 of 05 August 2019 before the two houses of Parliament – the National Assembly and the Senate, both of which are controlled by the ruling political coalition, according to the Applicants. On Tuesday 30 July 2019, the Bill was adopted by the National~~

Assembly; and on Friday 2 August 2019, by the Senate.

7. ~~On 02 August 2019, sixty-six (66) members of the National Assembly brought the matter before the Constitutional Council requesting the latter to determine, adjudge and declare that Articles 5, 6 and 17 of Law No. 2014-135 of 18 June 2014 are at variance with Articles 4 and 53 of the Ivorian Constitution.~~
8. ~~By two decisions (No. CI-2019-005/DCC/05-08/CC/SG of 05 August 2019 and No. CI-2019-006/DCC/13-08/CC/SG of 13 August 2019) the Constitutional Council declared inadmissible the Applicants' petition regarding the constitutionality of the new law on the composition of the Independent National Electoral Commission, citing various "shortcomings" of form and on the grounds that the impugned law had already been promulgated by the President of the Republic on the night of 05 August 2019.~~

III. ALLEGED VIOLATIONS

9. ~~The Applicants allege that the Respondent State has violated the following:~~

~~i. its commitment to comply with the Court's decisions to which it was a party and ensure their full implementation within a specified period, pursuant to Article 30 of the Protocol;~~

~~ii. its obligation to create an impartial and independent National Electoral Commission within the meaning of Article 17 of the African Charter on Democracy, Elections and Governance (ACDEG) and Article 3 of ECOWAS Democracy Protocol;~~

~~iii. its obligation to protect the right of citizens to participate freely in the government of their country, as provided under Article 13(1) and (2) of the Charter;~~

~~iv. its obligation to protect the right to equality before the law and equal protection of the law, pursuant to Article 10(3) of ACDEG, Article 3 (2) of the Charter and Article 26 of the International Covenant on Economic, Social and Cultural Rights (ICESCR);~~

~~v. its obligation to comply with Article 17 of ACDEG, Article 3 of Protocol A/SPI/12/01 on Democracy and Good Governance and Articles 4 and 53 of the~~

~~IV. SUMMARY OF THE PROCEDURE BEFORE THE COURT~~

~~10. On 17 September 2019, the Registry acknowledged receipt of the Application, registered and served it on the Respondent State on 19 September 2019, and granted the latter sixty (60) days to file a Response. A deadline of seven (7) days was granted to the Respondent State to file its Response to the request for provisional measures.~~

~~11. On 25 September 2019, the Registry acknowledged receipt of a new version of the Application which the Applicants sent in replacement of the first version. By notice of the same date, the said Application was forwarded to the Respondent State which was given fifteen (15) days to submit its Response in respect of provisional measures.~~

~~12. On 01 October 2019, the Registry received from the Respondent State a Response to the first version of the application for provisional measures and acknowledged receipt thereof. By notice of the same date, the Registry served this Response on the Applicants for a reply thereto within fifteen (15) days.~~

~~13. On 03 October 2019, the Registry acknowledged receipt of the list of the Respondent State's representatives. On the same day, the names of the representatives were duly transmitted to the Applicants.~~

~~14. On 15 October 2019, the Registry received a second Response from the Respondent State as regards provisional measures.~~

~~15. On 21 October 2019, the Registry received the Applicants' rejoinder as regards the provisional measures. On 23 October 2019, the Registry acknowledged receipt of the Applicants' rejoinder on the Respondent State's first Response to the request for provisional measures as well as the Respondent State's second Response. The said briefs were served on both parties for response within fifteen (15) days.~~

~~16. On 15 November 2019, the Registry acknowledged receipt of a second rejoinder~~

from the Respondent State in respect of the provisional measures. On the same day, the said Response was forwarded to the Applicants for a reply within seven (7) days of the notification.

V. JURISDICTION OF THE COURT

17. In considering an application, the Court must ensure that it has jurisdiction to hear the case, pursuant to Articles 3, 5(3) and 34(6) of the Protocol and Rules 39 and 40 of the Rules.

18. However, with regard to provisional measures, the Court need not satisfy itself that it has jurisdiction on the merits of the case, but simply that it has *prima facie*¹ jurisdiction.

19. In terms of Article 5(3) of the Protocol, "The Court may entitle relevant Non-Governmental organizations (NGOs) with observer status before the Commission and individuals to institute cases directly before it, in accordance with article 34(6) of this Protocol."

20. As mentioned in paragraph 2 of this Order, the Respondent State is a party to the Charter and the Protocol and has also made the declaration accepting the jurisdiction of the Court to receive applications from individuals and Non-Governmental Organizations in accordance with Article 34(6) of the Protocol read in conjunction with Article 5(3) thereof.

21. In the instant case, the rights claimed by the Applicant as having been violated are protected by the Charter, ICESCR and ECOWAS Protocol—instruments that the Court is empowered to interpret and apply under Article 3(1) of the Protocol.

22. In light of the foregoing, the Court notes that it has *prima facie* jurisdiction to hear the Application.

VI. MEASURES REQUESTED

23. The Applicants pray the Court to:

¹ Application No. 002/2013. Order of Provisional Measures, 15/3/2013, African Commission on Human and Peoples' Rights v. Libya (hereinafter referred to as "African Commission on Human and Peoples' Rights v. Libya, Order of Provisional Measures") § 10; Application No. 024/2016. Order of Provisional Measures, 03/6/2016, Amini Juma v. United Republic of Tanzania (hereinafter referred to as Amini Juma v. United Republic of Tanzania, Order of Provisional Measures), § 8.

~~i. order the Republic of Côte d'Ivoire, before any election whatsoever, to amend Law No. 2019-708 of 5 August 2019 on the reconstitution of the Independent Electoral Commission (IEC) to make that law compliant with the instruments to which Côte d'Ivoire is a party;~~

~~ii. order a provisional measure requiring the State of Côte d'Ivoire to temporarily stay implementation of the Independent Electoral Commission decisions stemming from the impugned law, for whatsoever election, until the Court renders its decision on the merits of the matter;~~

~~iii. not set up the Independent Electoral Commission on the basis of Law No. 2019-708 of 05 August 2019 titled Reconstitution of the Independent Electoral Commission;~~

~~iv. enjoin the various organs of the State of Côte d'Ivoire targeted by Law No. 2019-708 of 05 August 2019, including the Presidency of the Republic and the Ministry of Territorial Administration not to proceed with the appointment of members of the Independent Electoral Commission;~~

~~vi. enjoin the various organs of the State of Côte d'Ivoire, including the Presidency of the Republic and the Ministry of Territorial Administration, not to take their seat in the Independent Electoral Commission;~~

~~(...) and this, until the Court has rendered its decision on the merits”.~~

~~***~~

~~24. The Court notes that Article 27(2) of the Protocol provides that: “in cases of extreme gravity or urgency, and when necessary to avoid irreparable harm to persons, the Court shall adopt such provisional measures as it deems necessary”.~~

~~25. Furthermore, Rule 51(1) of the Rules provides that: “pursuant to Article 27(2) of the Protocol, the Court may, at the request of a party, the Commission, or on its own accord, prescribe to the parties any interim measure which it deems necessary to adopt in the interest of the parties or of justice”.~~

~~26. The Court notes that it has the duty to decide in each case whether in light of the particular circumstances of a case, it has to exercise the jurisdiction conferred on it by the above-mentioned provisions.~~

~~27. The Court takes into consideration the applicable law with regard to provisional measures which are specific. The Court cannot issue an Order *pendente lite* except the basic requisite conditions have been met, i.e. extreme gravity, urgency and prevention of irreparable harm to persons.~~

~~28. In the instant case, the Court notes that the Applicants made several requests in the Application for provisional measures.~~

~~29. As the Court has already ruled that it has *prima facie* jurisdiction, it will proceed to examine the provisional measures requested.~~

~~30. The Court notes that the Applicants in the present case are requesting the Court, pursuant to Article 27 of the Protocol and Rule 51 of the Rules, to order the following provisional measures: the various organs of the State of Côte d'Ivoire, including the Presidency of the Republic and the Ministry of Territorial Administration, not to take their seat in the IEC.~~

~~31. The Applicants argue that such measures are imperative in as much as the Electoral Commission does not meet the requirements of independence and impartiality. Furthermore, in their view, it is necessary to bear in mind that this reform is supposed to respond to the Court's injunction to the Republic of Côte d'Ivoire to reform its law to make it compliant with the international legal instruments to which the country is a party. It is noteworthy that, in 2010, the IEC was at the center of the electoral dispute that culminated in a civil war which, according to official figures, claimed the lives of over 3,248 people. Moreover, Côte d'Ivoire will in October 2020 have its high stake first election since that unfortunate post-electoral crisis of 2010/2011.~~

~~32. The Court notes that the Respondent State seeks a ruling that the Application for provisional measures is in respect of a law already enacted, that the members of the Electoral Commission have been sworn in before the Constitutional Council, and that the Bureau of the Electoral Commission was established on Monday 30 September 2019. The Court also notes that the Respondent State has contended that the provisional measures requested do not meet the requirements set forth in Article 27 of the Protocol, that the Applicants' pleas and arguments are based solely on fears without any real direct relationship with the impugned situation, and that the Applicants have not been able to sufficiently demonstrate that the conditions set forth by Article 27 of the Protocol have been met.~~

~~33. The Court notes that the Application for provisional measures seeking to prevent the application of the said law has become irrelevant following the establishment of the Independent Electoral Commission as well as the appointment of its members and the personalities proposed by the different organs of the Respondent State.~~

~~34. The Court holds that in view of the facts of this case as reported by the Applicants and the Respondent State, the circumstances do not reveal a situation of which the gravity and urgency would pose a risk of irreparable harm to the Applicants or trigger an immediate social disorder. The Court also holds that since the Applicants have not provided evidence as to the extreme gravity of the situation and given the circumstances of this case, the request for measures to be ordered prior to consideration of the merits is not justified. The Application is consequently dismissed.~~

~~35. This Order of provisional measures remains provisional in nature and in no way prejudices the Court's decisions on the merits of the case.~~

~~IV. OPERATIVE PART~~

~~36. For these reasons,~~

~~THE COURT,~~

~~*unanimously,*~~

~~*Rejects* the provisional measures requested;~~

~~Signed:~~

~~Ben KIOKO, Vice President;~~

~~and Robert ENO, Registrar.~~

~~Done at Zanzibar, thisDay of November 2019 in English and French, the French text being authoritative.~~